

Contract #: 242209

Entry Date: 7/24/2024 5:51:04 PM

Department: Wyoming State Parks & Cultural Resources,
Parks Division

WYOMING ATTORNEY
GENERAL'S OFFICE

Agency Contact: Carruthers, CarlyAnn

AUG 23 2024

Phone: 307-777-6968

Megan Pope
APPROVED AS TO FORM

Other Agency Contact: Christina Bird

Client Comments:

Contractor/Vendor Name: City of Cheyenne

Contract Title: High Plains Research Station
and Arboretum IA

Contract Type: Interagency Agreement

Contract Amount: 0.0000

Contract Effective Date:

Contract Expiration Date: 6/30/2026 12:00:00 AM

Status: Attorney Review Complete

RETURN VIA: Ink Signature - Inter-agency Mail

Assigned Attorney: Megan Pope

**INTERAGENCY AGREEMENT BETWEEN
STATE OF WYOMING, DEPARTMENT OF STATE PARKS AND CULTURAL
RESOURCES, DIVISION OF STATE PARKS, HISTORIC SITES & TRAILS
AND CITY OF CHEYENNE, WYOMING**

1. **Parties.** The parties to this Interagency Agreement (Agreement) are the State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites & Trails (State Parks), whose address is: 2301 Central Avenue, Cheyenne, WY 82002, and the City of Cheyenne (City), whose address is: 2101 O'Neil Avenue, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to outline projects, responsibilities, and special provisions at the High Plains Research Station and Arboretum (Site), including the following:
 1. Roles and responsibilities of State Parks;
 2. Roles and responsibilities of the City, including the Community Recreation and Events Department, Divisions of Cheyenne Urban Forestry and the Cheyenne Botanic Gardens; and
 3. Special provisions for changes to this Agreement based upon actions by the Wyoming State Legislature.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from the Effective Date through June 30, 2026. There is no right or expectation of extension and any extension will be determined at the discretion of State Parks.
4. **Payment.** No payment shall be made to either party by the other party as a result of this Agreement.
5. **Responsibilities of State Parks.** State Parks agrees to:
 - A. Abide by Section 024 of House Enrolled Act 50, 2024 Budget Session complete with the Governor's vetoes exercised, which appropriates three million five hundred thousand dollars (\$3,500,000.00) for operations, site improvements, facility stabilization, major maintenance and up to two (2) at-will employee contract positions at the high plains research station and arboretum, which is attached to this Agreement as Attachment A and incorporated herein by this reference.
 - B. All project management and coordination for State Parks shall be through a single point of contact designated as the State Parks Representative. The State Parks Representative is Christina Bird, Laramie District Manager, 307-631-1110, christina.bird@wyo.gov.
 - C. The State Parks Representative or their designee shall be responsible for corresponding and arranging meetings with City personnel and outside Agencies

and associations. In no instance will State Parks refer any matters to any City personnel or any other official in the City unless initial contact, both verbal and in writing, regarding the matter has first been presented to the City Representative.

- E.** Prepare a facilities condition assessment which outlines the existing conditions of the grounds, infrastructure, and structures on the property proposed to become the State Historic Site, as identified on Attachment B, High Plains Research Station and Arboretum Map, which is attached to this Agreement and incorporated herein by this reference.
- F.** Use the facilities condition assessment to prioritize use of funds for facility stabilization, major maintenance, and potential direction for site operations and management.
- G.** Prepare, in conjunction with the key stakeholders and providing for public engagement, a strategic plan for management activities, goals, and restoration of structures based upon the facilities condition assessment.
- H.** Meet with City staff on a minimum quarterly basis to provide project updates, future plans, and any other topics.
- I.** Work with the City to design and approve any partnership and management agreements.

6. Responsibilities of the City. The City agrees to:

- A.** Direct all project management and coordination for the City through a single point of contact designated as the City Representative. The City Representative is Mark Ellison, City Forester, City of Cheyenne, 307-637-6207, mellison@cheyennecity.org.
- B.** Address all correspondence directly to the State Parks Representative. In no instance will the City refer any matters to any Director or Deputy Directors or any other official in Wyoming unless initial contact, both verbal and in writing, regarding the matter has first been presented to the State Parks Representative.
- C.** Provide State Parks with access to the property owned and managed by the City, as shown on Attachment B.
- D.** Consult with the State Parks Representative and gain written permission prior to executing any site or building improvements during the term of this Agreement.
- E.** Meet with State Parks staff on a minimum quarterly basis to provide project updates, future plans, and any other topics.

- F. Work with State Parks to design partnership and management agreements.

7. **Special Provisions.**

- A. State Parks and the City shall develop a long-term lease for the property, which will go into effect should legislation pass designating the Site as a State Historic Site. Such a lease will detail the legal description of the site, terms and conditions for use and management of the site, length of the lease, termination clauses, external partnerships, and other general provisions.
- B. Upon passage of legislation designating the Site as a State Historic Site, the City shall introduce, through City Council, a measure to amend the long-term lease of the Site with the United States Department of Agriculture-Agricultural Research Service (USDA-ARS). This request shall include the return of sections of property identified by the survey as well as buildings identified by the USDA. Such a request would need to be referred to committee, and pass the voting process, and will reference the formal land survey and the transfer of several historic buildings.
- C. Upon passage of a lease modification referenced above in Section 7.B, the City shall approach USDA-ARS with the proposed lease modifications, beginning the process to return land and assets to the City for inclusion into a long-term lease with State Parks.

8. **General Provisions.**

- A. **Amendments.** Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. **Applicable Law, Rules of Construction, and Venue.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Entirety of Agreement.** This Agreement, consisting of six (6) pages; Attachment A, Section 024, State Parks & Cultural Resources, of House Enrolled Act 50, 2024 Budget Session, consisting of three (3) pages; and Attachment B, High Plains Research Station and Arboretum Map consisting of one (1) page represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.

- E. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- F. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- G. Notices.** All notices arising out of, or from the provisions of this Agreement shall be in writing and given to the parties at the addresses provided under this Agreement, either by regular mail or delivery in person.
- H. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by the Department of Administration and Information's Procurement Office and approved by the Governor of the State of Wyoming or his designee if required by Wyo. Stat. § 9-2-3204(b)(iv).
- I. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- J. Sovereign Immunity.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming, State Parks and the City expressly reserve sovereign or governmental immunity by entering into this Agreement and specifically retain immunity and all defenses available to them. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- K. Termination of Agreement.** This Agreement may be terminated, with cause, by either party upon thirty (30) days written notice. This Agreement may be terminated immediately for cause if either party fails to perform in accordance with the terms of this Agreement. All site-specific assets, upon termination for cause of the agreement, will be given to the City for future use at the Site.

- L. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- M. Time is of the Essence.** Time is of the essence in all provisions of the Agreement.
- N. Titles Not Controlling.** Titles of paragraphs are for reference only, and shall not be used to construe the language in this Agreement.
- O. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- P. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** By signing this Agreement, the parties certify that they have read and understood it, that they agree to be bound by the terms of the Agreement, and that they have the authority to sign it.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

STATE OF WYOMING, DEPARTMENT OF STATE PARKS AND CULTURAL RESOURCES, DIVISION OF STATE PARKS, HISTORIC SITES & TRAILS

Nicholas L. Neylon, Deputy Director

Date

CITY OF CHEYENNE

Patrick Collins, Mayor

Date

ATTEST:

Kristina F. Jones, City Clerk

WYOMING ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Meg Pope # 242209

Megan Pope, Senior Assistant Attorney General

8/23/24

Date

This document summarizes the Governor's vetoes exercised on 2024 House Bill 0001. Due to insertion of veto explanations, pagination in this document will not match the original enrolled act. See the Governor's veto message for vetoes on the original act.

ORIGINAL HOUSE
BILL NO. HB0001

ENGROSSED

ENROLLED ACT NO. 50, HOUSE OF REPRESENTATIVES

SIXTY-SEVENTH LEGISLATURE OF THE STATE OF WYOMING
2024 BUDGET SESSION

AN ACT to make appropriations for the fiscal biennium commencing July 1, 2024 and ending June 30, 2026; providing definitions; providing for appropriations and transfers of funds for the period of the budget and for the remainder of the current biennium ending June 30, 2024 as specified; providing for carryover of certain funds beyond the biennium as specified; providing for employee positions as specified; providing for duties, terms and conditions and other requirements relating to appropriations for the remainder of the current biennium ending June 30, 2024 and the period of the budget as specified; providing for position and other budgetary limitations; authorizing rulemaking; authorizing a charter school; providing appropriations for purposes related to state funded capital construction; creating accounts; amending existing law by redirecting revenues for the period of the budget; making conforming amendments; amending and repealing prior appropriations; providing for reports related to appropriations; continuing an account; amending and repealing prior appropriations of COVID-19 relief funds; specifying conditions on the appropriation and expenditure of COVID-19 relief funds; and providing for effective dates.

Be It Enacted by the Legislature of the State of Wyoming:

Section 1. As used in this act:

(a) "Agency" means any governmental unit or branch of government receiving an appropriation under this act;

(b) "Appropriation" means the authorizations granted by the legislature under this act to make expenditures from and to incur obligations against the general and other funds as specified;

(c) "Approved budget" means as defined by W.S. 9-2-1002(a)(xxiii);

(d) "A4" means an agency trust account;

(e) "EF" means the agency's account within the enterprise fund;

(f) "FF" means federal funds;

(g) "IS" means the agency's account within the internal service fund;

(h) "PF" means the retirement account created by W.S. 9-3-407(a);

(j) "PR" means private funding sources;

(k) "P2" means the deferred compensation account referenced in W.S. 9-3-507;

Attachment A to Interagency Agreement between State of Wyoming, Department of State Parks and Cultural Resources,
Division of State Parks, Historic Sites & Trails and City of Cheyenne

ENROLLED ACT NO. 50, HOUSE OF REPRESENTATIVES

SIXTY-SEVENTH LEGISLATURE OF THE STATE OF WYOMING
2024 BUDGET SESSION

	GENERAL	FEDERAL	OTHER	TOTAL
APPROPRIATION	FUND	FUNDS	FUNDS	APPROPRIATION
FOR	\$	\$	\$	\$
Section 023. PUBLIC SERVICE COMMISSION				
PROGRAM				
Administration		638,686	9,400,842 SR	10,039,528
Consumer Advocate Div.			2,940,385 SR	2,940,385
Universal Service Fund			5,408,242 SR	5,408,242
TOTALS	<u>0</u>	<u>638,686</u>	<u>17,749,469</u>	<u>18,388,155</u>
AUTHORIZED EMPLOYEES				
Full Time	40			
Part Time	<u>0</u>			
TOTAL	40			
Section 024. STATE PARKS & CULTURAL RESOURCES				
PROGRAM				
Administration & Support	2,441,387			2,441,387
Cultural Resources ^{1., 2.,}				
^{3., 4., 5., 6.}	9,946,917	3,778,744	206,277 EF	
			224,820 S14	
			4,924,210 SR	19,080,968
St. Parks & Hist. Sites ^{7.}	22,140,198	7,284,431	152,861 EF	
			800,000 S14	
			18,252,605 SR	48,630,095
TOTALS	<u>34,528,502</u>	<u>11,063,175</u>	<u>24,560,773</u>	<u>70,152,450</u>
AUTHORIZED EMPLOYEES				
Full Time	149			
Part Time	<u>71</u>			
TOTAL	220			

1. Of this general fund appropriation, not less than sixty-three thousand dollars (\$63,000.00) is appropriated to support manuscripts and publication of the annals of Wyoming.

2. Of this general fund appropriation, one hundred twenty thousand dollars (\$120,000.00) is appropriated for the "We the People" educational program. No funds from this appropriation shall be expended to pay or reimburse the University of Wyoming for indirect cost recovery or overhead expenses for the administration of the "We the People" educational program. ~~**[It is the intent of the legislature that this appropriation be included in the department of state parks and cultural resources' standard budget for the immediately succeeding fiscal biennium.]**~~ This appropriation shall not be transferred or expended for any other purpose. **[BRACKETED LANGUAGE SHOWN IN BOLD AND AS STRICKEN WAS VETOED BY GOVERNOR MARCH 22, 2024.]**

ENROLLED ACT NO. 50, HOUSE OF REPRESENTATIVES

SIXTY-SEVENTH LEGISLATURE OF THE STATE OF WYOMING
2024 BUDGET SESSION

	GENERAL	FEDERAL	OTHER	TOTAL
APPROPRIATION	FUND	FUNDS	FUNDS	APPROPRIATION
FOR	\$	\$	\$	\$

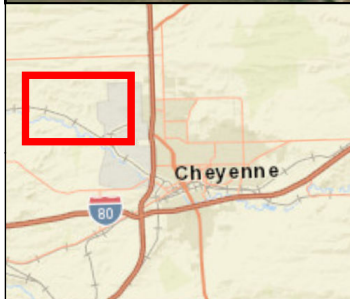
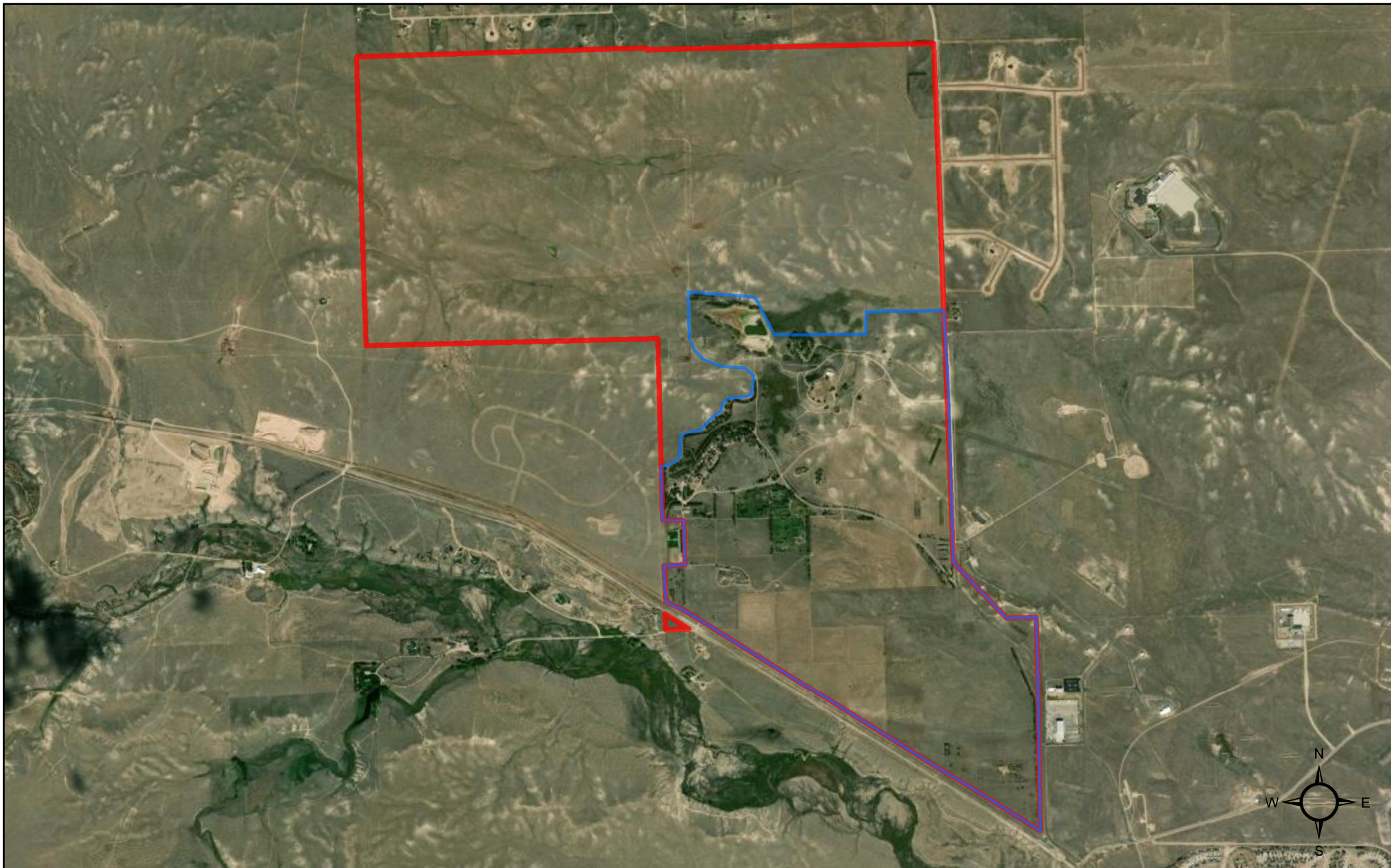
3. Of this general fund appropriation, three hundred thousand dollars (\$300,000.00) is appropriated and conditioned upon matching funds in the ratio of one dollar (\$1.00) of appropriated general funds to not less than two dollars (\$2.00) of matching funds from any nonstate sources for purposes of providing grants for humanities initiatives. ~~[It is the intent of the legislature that this appropriation be included in the department of state parks and cultural resources' standard budget for the immediately succeeding fiscal biennium.]~~ This appropriation shall not be transferred or expended for any other purpose. **[BRACKETED LANGUAGE SHOWN IN BOLD AND AS STRICKEN WAS VETOED BY GOVERNOR MARCH 22, 2024.]**

4. Of this general fund appropriation, ten thousand dollars (\$10,000.00) is appropriated to support the Wyoming centennial farm and ranch program. ~~[It is the intent of the legislature that this appropriation not be included in the department of state parks and cultural resources' standard budget for the immediately succeeding fiscal biennium.]~~ This appropriation shall not be transferred or expended for any other purpose. **[BRACKETED LANGUAGE SHOWN IN BOLD AND AS STRICKEN WAS VETOED BY GOVERNOR MARCH 22, 2024.]**

5. Of this general fund appropriation, ninety-six thousand five hundred eleven dollars (\$96,511.00) may be expended for authorized full-time and part-time employee positions within the personal services series (100 series) or through the contractual services series (900 series) as necessary to ensure the state's archaeology work on human remains is completed in the most effective and efficient manner as determined by the director of the department of state parks and cultural resources. ~~[This appropriation shall not be subject to Section 307 of this act.]~~ **[BRACKETED LANGUAGE SHOWN IN BOLD AND AS STRICKEN WAS VETOED BY GOVERNOR MARCH 22, 2024.]**

6. It is the intent of the legislature that of this general fund appropriation, one hundred seventy thousand five hundred forty-five dollars (\$170,545.00) not be included in the department of state parks and cultural resources' standard budget for the immediately succeeding fiscal biennium.

7. Of this general fund appropriation, three million five hundred thousand dollars (\$3,500,000.00) is appropriated for operations, site improvements, facility stabilization, major maintenance and up to two (2) at-will employee contract positions at the high plains research station and arboretum as determined by the director of the department of state parks and cultural resources. This appropriation shall not be transferred or expended for any other purpose.



High Plains Research Station and
Arboretum Proposed State Historic Site
Laramie County, WY

Attachment B to Interagency Agreement between State of Wyoming, Department of State Parks and Cultural Resources,
Division of State Parks, Historic Sites & Trails and City of Cheyenne

Data Source: ESRI, Laramie County Assessor
Date: 07/03/2023



Proposed SPHST Boundary (~876.91 acres)

Complete City/USDA Boundary (~2148.56 acres)

